

25SMCV06080 25SMCV06080

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C08%2F14%2F2026

Source SHA-256: 8fff7713ecc7d84eacde877a9bd4ab90b97d4a2a509f72e9a46ee99aabd20025

Case Number: 25SMCV06080 Hearing Date: August 14, 2026 Dept: P

Tentative

Ruling

Soheila

Hakimian v. Benjamin Mobasseri, Case No. 25SMCV06080

Defendant's

Motion to Quash Service of Summons

Hearing

Date: August 14, 2026

Background

Plaintiff

Soheila Hakimian sues Defendant Benjamin Mobasseri for motor vehicle negligence arising from a car accident at or near the intersection of Santa Monica Blvd. and Doheny Dr. in Los Angeles, California on November 1, 2024.

Hakimian

filed the complaint on November 20, 2025.

On March

18, 2024, Hakimian filed proof of service by substituted service.

On April

20, 2025, Mobasseri filed this Motion to Quash Service of Summons. As of August 7, 2026, this motion is unopposed.

Mobasseri

argues that Hakimian's proof of service shows that she served him at 1146 Maybrook Dr., Beverly Hills, CA 90210, an address where Mobasseri does not live and has never lived.

Governing

Law- Motion to Quash Service of Summons

Code of

Civil Procedure, section 418.10 states the following: "(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).)¿

"If a copy

of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode . .

. in the presence of a competent member of the household." (Code Civ. Proc. § 415.20.)

"[A] summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing."

"[C]ompliance¿with

the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v.

Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

Discussion

When a defendant moves to quash service of the summons and complaint, the plaintiff has the burden of proving effective service. (Ibid.) Here, Mobasseri submits evidence that he does not reside, and has never resided at the address where he was served, 1146 Maybrook Drive, Beverly Hills, CA, 90210. (Mobasseri Decl., ¶¶ 5-12.) That evidence rebuts the presumption raised by Plaintiff’s proof of service.

Plaintiff

did not make substituted service on Mobasseri’s dwelling house, usual place of abode, or mailing address, so service was improper.

Conclusion

Mobasseri’s

Motion to Quash Service of Summons is GRANTED.